

Court No. - 7

Case :- WRIT - C No. - 52249 of 2014

Petitioner :- Ex. Eng. E.D.D. Dakshinanchal V.V.Nigam Ltd. And Another

Respondent :- Jagdish Verma And Another

Counsel for Petitioner :- Baleshwar Chaturvedi

Counsel for Respondent :- Himanshu Pandey,S.N. Pandey

Hon'ble Mrs. Sunita Agarwal,J.

As prayed put up tomorrow i.e. 25.9.2014 as fresh.

Order Date :- 24.9.2014

Atul kr. sri.

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Counsel for Respondent :- Himanshu Pandey, S.N. Pandey

Hon'ble Mrs. Sunita Agarwal, J.

Heard Shri Baleshwar learned counsel for the petitioner And shri A.K.Tripathi holding brief of Shri S.N. Pandey, learned counsel for the respondent no.1

The writ petition is directed against award dated 16.7.2014 passed by the Permanent Lok Adalat, Jhansi whereby petitioner has been directed to restore the electricity connection no. 4102/039033 failing which it has to deposit amount of Rs. 500/- per week towards compensation.

The writ petition has been filed by the respondent no.1 before the Permanent Lok Adalat for restoration of electricity connection on the ground that electricity has been disconnected on the application moved in the name of Lal Chandra Verma who has died in the year 1985.

Admittedly the application has been moved on 5.4.2014 and electricity supply of the premises in question has been disconnected on the same day. It is evident that from the award passed by the Permanent Lok Adalat that no report of outstanding electricity dues has been called for before passing the order for permanent disconnection. Moreover the application has been filed in the name of a dead person. Petitioner did not make any effort to verify the genuineness of the application moved in the name of Lal Chandra Verma. Without calling the report as to whether any electricity dues are pending on 5.4.2014, the permanent disconnection was made. Clause 4.38 of Electricity Supply Code 2005 provides that permanent disconnection can be made on the request

of the consumer. It further provides that if dues are not paid by the consumers, the surcharge payable by the consumer on dues shall be levied upto the period of issue of Section 5 notice or for maximum eight months only. The security amount shall be adjusted first and after adjusting the security amount the net arrear shall be calculated on which surcharge shall be payable by the consumer. Learned counsel for the petitioner submits that the permanent disconnection has not been done as per the procedure prescribed under Section 38 of the Code.

In view thereof no interference is called for in the order impugned.

The writ petition is dismissed.

Order Date :- 25.9.2014

Atul kr. sri.